SUPERIOR COURT OF CALIFORNIA, CONTRA COSTA COUNTY
MARTINEZ, CA
DEPARTMENT 39
JUDICIAL OFFICER: EDWARD G WEIL
HEARING DATE: 01/29/2026

The tentative ruling will become the Court's ruling unless by 4:00 p.m. of the court day preceding the hearing, counsel or self-represented parties email or call the department rendering the decision to request argument and to specify the issues to be argued. Calling counsel or self-represented parties requesting argument must advise all other affected counsel and self-represented parties by no later than 4:00 p.m. of their decision to appear and of the issues to be argued**.** Failure to timely advise the Court and counsel or self-represented parties will preclude any party from arguing the matter. (*Local Rule* 3.43(2).)

Note: In order to minimize the risk of miscommunication, parties are to provide an **EMAIL NOTIFICATION TO THE DEPARTMENT OF THE REQUEST TO ARGUE AND SPECIFICATION OF ISSUES TO BE ARGUED**. Dept. 39's email address is: dept39@contracosta.courts.ca.gov. Warning: this email address is not to be used for any communication with the department except as expressly and specifically authorized by the court. Any emails received in contravention of this order will be disregarded by the court and may subject the offending party to sanctions.

Submission of Orders After Hearing in Department 39 Cases

The prevailing party must prepare an order after hearing in accordance with CRC 3.1312. If the tentative ruling becomes the Court's ruling, a copy of the Court's tentative ruling **must be attached to the proposed order** when submitted to the Court for issuance of the order.

Courtroom Clerk's Calendar

1. 10:00 AM CASE NUMBER: MSC21-02036
CASE NAME: PEOPLE OF CA VS. CORTEVA INC
SETTLEMENT CONFERENCE WITH JUDGE WEIL AS REQUESTED BY PARTIES
FILED BY:
TENTATIVE RULING:

Parties to appear.

Law & Motion

2. 9:00 AM CASE NUMBER: C22-00932
CASE NAME: CARMELLA ESPANA VS. ED EGZON
HEARING ON DEMURRER TO: 3RD AMENDED COMPLAINT
FILED BY: THE PERMANENTE MEDICAL GROUP, INC. A CALIFORNIA CORPORATION
TENTATIVE RULING:

Before the Court is a demurrer by defendant The Permanente Medical Group, Inc. to plaintiff's third amended complaint. For the reasons set forth, the demurrers to the first through fourth causes of action are **sustained, with leave to amend.**

Background

Plaintiff Carmella Ashley Espana filed her complaint initiating this action on May 5, 2022. The complaint named one defendant, Dr. Jonathan Rosenson, and no Doe defendants. The attachment to the complaint described an "Incident" she alleges occurred on May 5, 2021, when, in advance of a scheduled spinal injection procedure Plaintiff was to undergo at Kaiser's facility in Richmond, a male nurse at Kaiser allegedly forcefully lifted her leg from the floor onto an exam table. (Compl. Incident att.) She alleged that the nurse's conduct caused her to suffer a painful leg injury, and that she was taken to Kaiser's emergency room where Dr. Rosenson, an emergency room physician, refused to give her a CT scan or perform an MRI on her leg to determine the extent of the muscle tear. (Compl. Incident att..) She alleged she was improperly discharged with crutches and without treatment and asserted two causes of action for general negligence and medical negligence. (Compl. ¶ 10.b. and f. and Incident att.)

Plaintiff filed a first amended complaint on November 21, 2022, which identified as defendants Dr. Rosenson, Ed Egzon, "Kaiser Permanente Hospital Richmond," and Does 1 to 3. On October 20, 2023, Plaintiff filed a second amended complaint which named as defendants Dr. Rosenson, Ed Egzon, "Kaiser Permanente Northern California (Hospital Richmond)," and Does 1 to 3.

Plaintiff engaged counsel in May 2025. Through counsel, she entered into a stipulation approved by the Court allowing her to file her operative third amended complaint ("3AC"). (7/8/2025 Stip. and Order.) The 3AC was filed on August 21, 2025 and names as defendants Ed Egzon, "The Permanente Medical Group, Inc." ("TPMG"), and Does 2-30 as defendants. Plaintiff alleges that she substituted TPMG as "Doe 1." (3AC ¶ 2.) The 3AC alleges causes of action for medical battery (1st C/A), medical malpractice (2nd C/A), negligent infliction of emotional distress ("NIED") by breaching the duty of care owed to Plaintiff (3AC ¶¶ 17, 18, 3rd C/A), and lack of informed consent (4th C/A).

Legal Standards Governing Demurrer

In ruling on the demurrer, the Court must accept as true all well-pleaded factual allegations of the complaint, but not legal or factual conclusions or contentions of law. (*City of Dinuba v. County of Tulare* (2007) 41 Cal. 4th 859, 865; *Julian v. Mission Community Hospital* (2017) 11 Cal.App.5th 360, 374.) The Court gives "the complaint a reasonable interpretation, reading it as a whole and its parts in their context. [Citation omitted.]" (*Evans v. City of Berkeley* (2006) 38 Cal. 4th 1, 6.) (*See also* Code Civ.

Proc. § 452.)

A general demurrer may be sustained when the facts alleged show the action is barred by the statute of limitations. (*Vaca v. Wachovia Mortgage Corp.* (2011) 198 Cal.App.4th 737, 746.) To sustain a demurrer based on this ground, it must "clearly and affirmatively" appear on the face of the complaint that the cause of action is time-barred, not that it might be barred. (*Committee v. Green Foothills v. Santa Clara County Bd. of Supervisors* (2010) 48 Cal.4th 32, 42; *Lee v. Hanley* (2015) 61 Cal.4th 1225, 1232.)

Analysis

TPMG contends that all causes of action in the 3AC are subject to a one-year statute of limitations under Code of Civil Procedure section 340.5 and that all claims against it are time-barred. TPMG argues that Plaintiff's designation of it as "Doe 1" in the 3AC does not make the claim against it timely, as Plaintiff's original complaint, filed exactly one year after the alleged incident, did not name any Doe defendants and only asserted a claim against Dr. Rosenson for his alleged failure to provide a CT scan or MRI in the emergency room. TPMG also generally demurs to the first and third causes of action on the ground that neither alleges facts sufficient to state a cause of action for the claim stated.

A. Medical Battery (1st C/A)

In *So v. Shin* (2013) 212 Cal.App.4th 652, the Court explained the tort of medical battery: "The essential elements of a cause of action for battery are: (1) defendant touched plaintiff, or caused plaintiff to be touched, with the intent to harm or offend plaintiff; (2) plaintiff did not consent to the touching; (3) plaintiff was harmed or offended by defendant's conduct; and (4) a reasonable person in plaintiff's position would have been offended by the touching. [Citations omitted.] [¶] A medical battery occurs where 'a doctor obtains consent of the patient to perform one type of treatment and subsequently performs a substantially different treatment for which consent was not obtained . . . .' [Citations omitted.] In contrast, 'when the patient consents to certain treatment and the doctor performs that treatment but an undisclosed inherent complication with a low probability occurs, no intentional deviation from the consent given appears; rather, the doctor in obtaining consent may have failed to meet his due care duty to disclose pertinent information. In that situation the action should be pleaded in negligence.' [Citation omitted.]" (*Id.* at 669 [emphasis added].)

1. Whether the Facts Alleged State A Claim for Medical Battery

Plaintiff alleges that she "was attempting to get onto a clinic bed prior to an epidural injection when Defendant Doe 1 used excessive force constituting a battery" causing her tendon to tear and a muscle injury, that "Defendants" used excessive force, that she did not "authorize or agree to the procedure," and that Defendants "used excessive force without her consent." (3AC ¶¶ 5, 6, 9, 10.) A fair construction of these allegations is that Plaintiff did not consent to the use of "excessive force" to move her onto the bed for the procedure, but that Plaintiff consented to the general treatment, i.e., the epidural which necessarily involved Plaintiff being placed onto a bed or exam table so that the epidural injection could be performed. While Plaintiff alleges she did not consent "to the procedure," the "procedure" described in the preceding paragraph is Doe 1 "us[ing] excessive force constituting a battery" which injured her leg. (3AC ¶¶ 5, 6.) This interpretation is consistent with Plaintiff's subsequent allegations that Defendants "negligently and carelessly severely injured Plaintiff's left leg while being placed on an exam table." (3AC ¶ 13.)

Plaintiff's opposition does not address *Larson v. UHS of Rancho Springs, Inc.* (2014) 230 Cal. App. 4th 336 cited by TPMG, in which the Court held that the plaintiff's claims for battery and intentional infliction of emotional distress against an anesthesiologist were for professional negligence and subject to the one-year statute of limitations of Code of Civil Procedure section 340.5 despite his characterization of the claims as intentional torts. In complaints filed in an earlier action and in the complaint in the action before the Court of Appeal, the plaintiff alleged his anesthesiologist injured him "by forcefully grabbing and twisting his arm while conducting a preoperative checkup, and by prying open Larson's mouth and violently punching, lifting, and pushing Larson's face as he put on the mask to administer anesthesia. <u>These allegations challenge the manner in which Shuman rendered the professional health care services he was hired to perform; they do not allege intentional torts committed for an ulterior purpose</u>. [¶] . . . . Larson's claims are based on how Shuman performed his preoperative checkup and how he administered anesthesia. Larson alleges Shuman performed some of the tasks 'forcefully' and 'violently,' but those self-serving characterizations are merely attempts to avoid MICRA and the restrictions it imposes on all medical malpractice claims." (*Id.* at 351-352.)

Plaintiff arguably could be attempting to allege that she did not consent to "Doe 1" (TPMG, or presumably the nurse) touching her or assisting her at all to move her onto the bed, but those facts are not pled in the 3AC. She does not allege that TPMG, or the nurse, intended to injure her. Similar to the *Larson* case, the cause of action sounds in professional negligence for failing to meet the standard of care in using "excessive force" to move her onto the bed in preparation for the epidural injection.

2. <u>Applicable Statute of Limitations</u>

Actions against a health care provider based on alleged professional negligence must be commenced within the shorter of "three years after the date of injury or one year after the plaintiff discovers, or through the use of reasonable diligence should have discovered, the injury." (Code Civ. Proc. § 340.5.) Plaintiff does not dispute that the one-year statute of limitations applies to most of her causes of action, but she contends her claim for medical battery is subject to a two-year statute of limitation under Code of Civil Procedure section 335.1. (*See also Daley v. Regents of University of California* (2019) 39 Cal.App.5th 595, 602 [statute of limitations is two years for medical battery].) Plaintiff's first cause of action as pled, however, alleges professional negligence to which the one-year statute of limitations applies, which began running when Plaintiff clearly discovered the injury had occurred on May 5, 2021.

3. <u>Effect of Naming TPMG as Doe 1 and Relation Back Doctrine</u>

The first amended complaint filed in November 2022, more than five months after the one-year statute of limitations ran, is the first time Plaintiff named any Kaiser entity or Doe defendants. Plaintiff argues that because TPMG was named as a Doe defendant in the 3AC pursuant to a stipulation and court order, the fictitious name statute and relation back doctrine should apply to essentially make TPMG a party as if it had been named in the original complaint.

In the July 2025 stipulation, the parties agreed that Plaintiff could file her 3AC but that "Defendants reserve all rights to challenge the allegations and basis for the TAC by way of the appropriate responsive pleadings." (7/8/2025 Stip. and Order p. 2, ll. 8-9.) Code of Civil Procedure section 474 provides in pertinent part, "When the plaintiff is ignorant of the name of a defendant, he must state that fact in the complaint, or the affidavit if the action is commenced by affidavit, and such defendant may be designated in any pleading or proceeding by any name, and when his true name is discovered, the pleading or proceeding must be amended accordingly." The statute by its terms requires the complaint to name the defendant, though by the fictitious name.

"The general rule is that an amended complaint that adds a new defendant does not relate back to the date of filing the original complaint and the statute of limitations is applied as of the date the amended complaint is filed, not the date the original complaint is filed. [Citations omitted.]" (*Woo v. Superior Court* (1999) 75 Cal. App. 4th 169, 176.) Substitution of a new defendant for a "Doe" defendant named fictitiously in a cause of action in a prior complaint is an exception to the general rule, such that "[i]f the requirements of section 474 are satisfied, the amended complaint substituting a new defendant for a fictitious Doe defendant filed after the statute of limitations has expired is deemed filed as of the date the original complaint was filed. [Citation omitted.]" (*Id.*) "Among the requirements for application of the section 474 relation back doctrine is that the new defendant in an amended complaint be substituted for an existing fictitious Doe defendant named in the original complaint. [Citations omitted.]" (*Id.* [emphasis added].) The earliest pleading in which Doe defendants were named was the first amended complaint, which was filed after the one-year statute of limitations of Code of Civil Procedure section 340.5 had passed.

Based on the Court's ruling that the one-year statute of limitations applies to the medical battery claim as alleged in the 3AC, any application of the relation back doctrine to the first amended complaint does not make the first cause of action timely filed against TPMG. The Court is not persuaded that either the July 2025 stipulation or Code of Civil Procedure section 474 supports applying the relation back doctrine to treat TPMG as if it were named as a defendant in the original complaint. The Court need not address TMPG's contention that Plaintiff unreasonably delayed in substituting the proper Kaiser entity (TPMG) for a Doe defendant as a result. The argument in any event is based on evidence outside the 3AC which the Court does not consider in ruling on a demurrer, except for matters subject to judicial notice. (*Donabedian v. Mercury Ins. Co.* (2004) 116 Cal.App.4th 968, 994.)

4. Equitable Tolling

Plaintiff argues that even if her claims are subject to the one-year statute of limitations under Code of Civil Procedure section 340.5, the claims are nevertheless not time-barred based on the equitable tolling doctrine set forth in *Saint Francis Memorial Hospital v. State Department of Public Health* (2020) 9 Cal.5th 710. The Court in *St. Francis* held that the equitable tolling doctrine could apply to make a petition for writ of mandate subject to the statute of limitations of Government Code section 11523 timely. (*St. Francis, supra,* 9 Cal.5th at 719-720.) The Court held there is a rebuttable presumption that a statute setting a statute of limitations is subject to the application of the equitable tolling doctrine. (*Id.* at 720.) Three elements must be satisfied for a party to invoke the equitable tolling doctrine: " '[(1)] timely notice, and [(2)] lack of prejudice, to the defendant, and [(3)] reasonable and good faith conduct on the part of the plaintiff.' [Citation omitted.]" (*Id.* at 724.)

Plaintiff's opposition argues why the facts and circumstances of this case support the application of the equitable tolling doctrine. The Court in ruling on the demurrer is limited to consideration of the facts alleged in the 3AC. There are no facts alleged in the 3AC that support the application of the equitable tolling doctrine to the medical battery or any other cause of action alleged against TPMG. The Court makes no determination as to whether the additional facts described in Plaintiff's opposition would be sufficient, if alleged, to invoke the equitable tolling doctrine as to the medical battery claim, or any other cause of action alleged in the 3AC. Because the facts essential to invoke that doctrine are not alleged in the 3AC, the equitable tolling doctrine cannot make the medical battery claim, or the other causes of action of the 3AC, sufficient to overcome a demurrer based on the statute of limitations.

TPMG argues in its reply that the equitable tolling doctrine is not available as a matter of law to extend the statute of limitations of Code of Civil Procedure section 340.5, an argument Plaintiff has not had an opportunity to address. In any event, the 3AC does not allege any factual basis to apply the doctrine as pled. Until Plaintiff alleges facts in the operative pleading sufficient to invoke the application of the doctrine under the *St. Francis* decision, the Court does not need to reach that legal issue.

On these grounds, the general demurrer by TPMG to the first cause of action is **sustained, with leave to amend**.

B. Medical Malpractice and Lack of Informed Consent (2nd and 4th C/As)

Plaintiff does not dispute that the one-year statute of limitations under Code of Civil Procedure section 340.5 applies to these two causes of action. (*See, e.g., Warren v. Schecter* (1997) 57 Cal.App.4th 1189, 1201 [applying Code of Civil Procedure section 340.5 to informed consent claims]; *Larson, supra,* 230 Cal.App.4th at 345 [Code of Civil Procedure section 340.5 one-year statute of limitations applies to claim for health care provider's professional negligence].) To make these claims timely as to TPMG, Plaintiff relies on her arguments regarding the relation back doctrine for Doe defendants, the stipulation allowing her to file the 3AC, and the equitable tolling doctrine. For the same reasons set forth above in regard to the medical battery cause of action, treated as a professional negligence claim subject to Code of Civil Procedure section 340.5, Plaintiff's claims for medical malpractice and lack of informed consent against TPMG are time-barred. The first date on which Plaintiff filed a complaint naming as a defendant a Kaiser entity or Doe defendants was in November 2022, more than five months after the one-year statute of limitations had elapsed. Plaintiff has cited no authority that would make her claims against TPMG relate back to the filing of the original complaint. The 3AC also does not plead facts to support the application of the equitable tolling doctrine to make these causes of action against TPMG timely for the reasons explained above.

The general demurrers to the second and third cause of action based on the statute of limitations are **sustained, with leave to amend.**

C. NIED (3rd C/A)

"Negligent infliction of emotional distress is not an independent tort; it is merely convenient terminology descriptive of the context in which the negligence occurred." (*Long v. PKS, Inc.* (1993) 12 Cal.App.4th 1293, 1297.) (*See also Marlene F. v. Affiliated Psychiatric Medical Clinic, Inc.* (1989) 48 Cal.3d 583, 588.) Rather, if a negligence cause of action is otherwise established, then " '[d]amages for severe emotional distress . . . are recoverable in a negligence action when they result from the breach of a duty owed the plaintiff that is assumed by the defendant or imposed on the defendant as a matter of law, or that arises out of a relationship between the two.' [Citation omitted.]" (*Long v. PKS, Inc., supra,* 12 Cal.App.4th at 1297-1298 [quoting *Marlene F. v. Affiliated Psychiatric Medical Clinic, Inc.* (1989) 48 Cal.3d at 590].) (*See also Potter v. Firestone Tire & Rubber Co.* (1993) 6 Cal.4th 965, 984 [under California law, damages for emotional distress are recoverable only if the defendant has breached some other duty to the plaintiff].)

There appears to be no dispute that the NIED claim arises out of a breach of duty in the provision of professional medical services, and that the one-year statute of limitations of Code of Civil Procedure section 340.5 applies to this cause of action. TPMG argues there is no separate cause of action for NIED under California law but does so only in the context of its argument that this cause of action is barred by the statute of limitations. Arguably, the NIED claim then merely alleges another claim for negligence with the emotional distress injury allegedly caused by TPMG's medical negligence. This cause of action against TPMG is barred by the one-year statute of limitations of Code of Civil Procedure section 340.5 for the same reasons as Plaintiff's second and third causes of action.

The demurrer to the third cause of action based on the statute of limitations is **sustained, with leave to amend.**

As of March 1, 2026, this case is assigned for all purposes to Department 10, the Honorable Julia Campins.

3. 9:00 AM CASE NUMBER: C22-02341
CASE NAME: ALMA CANLAS VS. CSAA INSURANCE EXCHANGE, AN UNINCORPORATED ASSOCIATION
***HEARING ON MOTION IN RE: BE RELIEVED AS COUNSEL**
FILED BY: SU, ALIVIA
****TENTATIVE RULING:****

The **motion is granted as to Plaintiff Alivia Su**. Counsel is directed to serve the order relieving counsel in compliance with CRC 3.1362(d). **Counsel is not formally relieved until the order is served on the client and proof of service is filed with the court**.

As of March 1, 2026, this case is assigned for all purposes to Department 10, the Honorable Julia Campins.

4. 9:00 AM CASE NUMBER: C22-02341
CASE NAME: ALMA CANLAS VS. CSAA INSURANCE EXCHANGE, AN UNINCORPORATED ASSOCIATION
***HEARING ON MOTION IN RE: BE RELIEVED AS COUNSEL**
FILED BY: ROBINSON, JOHN
****TENTATIVE RULING:****

The **motion is granted as to Plaintiff John Robinson**. Counsel is directed to serve the order relieving counsel in compliance with CRC 3.1362(d). **Counsel is not formally relieved until the order is served on the client and proof of service is filed with the court**.

As of March 1, 2026, this case is assigned for all purposes to Department 10, the Honorable Julia Campins.

5. 9:00 AM CASE NUMBER: C22-02772

CASE NAME: MARYAMA ALHARK VS. CORTEVA AGRISCIENCE LLC, A DELAWARE LIMITED LIABILITY COMPANY
***HEARING ON MOTION IN RE: FINAL APPROVAL**
FILED BY: ALHARK, MARYAMA
****TENTATIVE RULING:****

Plaintiff Maryama Alhark moves for final approval of her class action and PAGA settlement with defendants Corteva Agriscience LLC and Hunter International, Inc.

A. Background and Settlement Terms

The original complaint was filed on December 20, 2022, raising class action claims on behalf of non-exempt employees, alleging that defendant violated the Labor Code in various ways, including failure to pay minimum and overtime wages, failure to provide meal breaks, failure to provide proper wage statements, failure to reimburse necessary business expenses, and failure to pay all wages due on separation. Separately, on February 28, 2023, a PAGA action was filed. It was amended on April 4, 2023. The cases were consolidated on July 31, 2023.

The settlement would create a gross settlement fund of $1,750,000. The class representative payment to plaintiff would be $10,000. Attorney's fees would be $583,333.33 (one-third of the settlement). Litigation costs would not exceed $25,000. The settlement administrator's costs would not exceed $15,000. PAGA penalties would be $150,000, resulting in a payment of $112,500 to the LWDA and $37,500 to plaintiffs. The net amount paid directly to the class members would be about $966,667. (In conjunction with the motion for final approval, counsel refine the estimate to $974,700.) The fund is non-reversionary. Based on the estimated class size of 448 people, the average net payment for each class member is approximately $2,100 (now revised to $2,331).

The proposed settlement would certify a class of all current and former non-exempt employees employed by Defendants during the class period.

The class members will not be required to file a claim. Class members may object or opt out of the settlement. (Aggrieved employees cannot opt out of the PAGA portion of the settlement.) Funds would be apportioned to class members based on the number of workweeks worked during the class period.

Various prescribed follow-up steps will be taken with respect to mail that is returned as undeliverable. Checks undelivered or uncashed 180 days after mailing will be voided, and would be paid to the State Controller's unclaimed property fund.

Since preliminary approval, notice has been given. 417 notice packets were mailed, and only three were ultimately found undeliverable. One request for exclusion has been received, and no objections.

The settlement contains release language covering "all claims and causes of action alleged in the Class Action Complaint; and (ii) any and all additional claims that reasonably could have been alleged based on the facts stated in the Operative Complaints[.]" (Settlement, Par. 5.2) Under recent appellate authority, the limitation to those claims with the "same factual predicate" as those alleged in the complaint is critical. (*Amaro v. Anaheim Arena Mgmt., LLC* (2021) 69 Cal.App.5th 521, 537 ["A court cannot release claims that are outside the scope of the allegations of the complaint." "Put another way, a release of claims that goes beyond the scope of the allegations in the operative complaint' is impermissible." (*Id*., quoting *Marshall v. Northrop Grumman Corp*. (C.D. Cal.2020) 469 F.Supp.3d 942, 949.)

Informal and formal written discovery was undertaken. The matter settled after arms-length negotiations, which included a session with an experienced mediator.

Counsel attest that they have analyzed the value of the case, and that the result achieved in this litigation is fair, adequate, and reasonable. The moving papers include an estimate of the potential value of the case, broken down by each type of claim.

The potential liability needs to be adjusted for various evidence and risk-based contingencies, including problems of proof. PAGA penalties are difficult to evaluate for a number of reasons: they derive from other violations, they include "stacking" of violations, the law may only allow application of the "initial violation" penalty amount, and the total amount may be reduced in the discretion of the court. (See Labor Code, § 2699(e)(2) [PAGA penalties may be reduced where "based on the facts and circumstances of the particular case, to do otherwise would result in an award that is unjust arbitrary and oppressive, or confiscatory."])

Counsel attest that notice of the proposed settlement was transmitted to the LWDA concurrently with the filing of the motion.

B. Legal Standards

The primary determination to be made is whether the proposed settlement is "fair, reasonable, and adequate," under *Dunk v. Ford Motor Co*. (1996) 48 Cal.App.4th 1794, 1801, including "the strength of plaintiffs' case, the risk, expense, complexity and likely duration of further litigation, the risk of maintaining class action status through trial, the amount offered in settlement, the extent of discovery completed and the state of the proceedings, the experience and views of counsel, the presence of a governmental participant, and the reaction … to the proposed settlement." (See also *Amaro v. Anaheim Arena Mgmt., LLC, supra,* 69 Cal.App.5th 521.)

Because this matter also proposes to settle PAGA claims, the Court also must consider the criteria that apply under that statute. Recently, the Court of Appeal's decision in *Moniz v. Adecco USA, Inc.* (2021) 72 Cal.App.5th 56, provided guidance on this issue. In *Moniz*, the court found that the "fair, reasonable, and adequate" standard applicable to class actions applies to PAGA settlements. (*Id.*, at 64.) The Court also held that the trial court must assess "the fairness of the settlement's allocation of civil penalties between the affected aggrieved employees[.]" (*Id*., at 64-65.)

California law provides some general guidance concerning judicial approval of any settlement. First, public policy generally favors settlement. (*Neary v. Regents of University of California* (1992) 3 Cal.4th 273.) Nonetheless, the court should not approve an agreement contrary to law or public policy. (*Bechtel Corp. v. Superior Court* (1973) 33 Cal.App.3d 405, 412; *Timney v. Lin* (2003) 106 Cal.App.4th 1121, 1127.) Moreover, "[t]he court cannot surrender its duty to see that the judgment to be entered is a just one, nor is the court to act as a mere puppet in the matter." (*California State Auto. Assn. Inter-Ins. Bureau v. Superior Court* (1990) 50 Cal.3d 658, 664.) As a result, courts have specifically noted that *Neary* does not always apply, because "[w]here the rights of the public are implicated, the additional safeguard of judicial review, though more cumbersome to the settlement process, serves a salutatory purpose." (*Consumer Advocacy Group, Inc. v. Kintetsu Enterprises of America* (2006) 141 Cal.App.4th 48, 63.)

C. Attorney fees

Plaintiff seeks one-third of the total settlement amount as fees ($583.333/33), relying on the "common fund" theory. Even a proper common fund-based fee award, however, should be reviewed through a lodestar cross-check. In *Lafitte v. Robert Half International* (2016) 1 Cal.5th 480, 503, the Supreme Court endorsed the use of a lodestar cross-check as a way to determine whether the percentage allocated is reasonable. It stated: "If the multiplier calculated by means of a lodestar cross-check is extraordinarily high or low, the trial court should consider whether the percentage used should be adjusted so as to bring the imputed multiplier within a justifiable range, but the court is not necessarily required to make such an adjustment." (*Id*., at 505.) At the Court's direction, counsel have prepared a lodestar fee estimate, estimating $156,780, based on 195.9 hours, at a blended rate of $800 per hour. This results in an imputed multiplier of 3.72. This imputed multiplier is relatively high for this type of case, in this Court's experience. In addition, however, the average individual payment ($2,331), is relatively high. The Court finds that a reasonable fee for this case would be 30% (as opposed to the requested 33 1/3%) which would constitute $525,000. This still results in an imputed multiplier of 3.35.

Litigation costs of $21,165.90 are reasonable and are approved.

Settlement administration costs of $10,800 are reasonable and are approved.

The requested representative payment of $10,000 for plaintiff is reviewed now, under the criteria for evaluation of representative payment requests discussed in *Clark v. American Residential Services LLC* (2009) 175 Cal.App.4th 785, 804-807. Plaintiff attests that she spent at least 20-25 hours of time on the case, and she accepted undefined "risk" by doing so. Considering all of the factors, particularly the size of the settlement, the full requested payment is approved.

D. Conclusion

The Court finds that the settlement is fair, reasonable, and adequate, with the small reduction in the attorney's fees. The motion is granted. Counsel are directed to prepare an order reflecting this tentative ruling and the other findings in the previously submitted proposed order. The judgment should identify the individual class member who is excluded, so that if they ever bring a claim, it can easily be determined that they are not bound by the settlement. The ultimate judgment must provide for a compliance hearing after the settlement has been completely implemented. Plaintiffs' counsel are to submit a compliance statement one week before the compliance hearing date. 5% of the attorney's fees are to be withheld by the claims administrator pending satisfactory compliance as found by the Court.

The compliance hearing will be held in Department 16, the Honorable Benjamin Reyes, which is assigned to this case for all purposes as of March 1, 2026.

6. 9:00 AM CASE NUMBER: C23-02227
CASE NAME: LATINIA JOHNSON VS. WALMART INC.
***HEARING ON MOTION IN RE: BE RELIEVED AS COUNSEL**
FILED BY: JOHNSON, LATINIA
<u>*TENTATIVE RULING:*</u>

The **motion is granted**. Counsel is directed to serve the order relieving counsel in compliance with CRC 3.1362(d). **Counsel is not formally relieved until the order is served on the client and proof of**

service is filed with the court.

As of March 1, 2026, this case is assigned for all purposes to Department 10, the Honorable Julia Campins.

7. 9:00 AM CASE NUMBER: C23-02820
CASE NAME: ILIANA REYES VS. DOES 1 THROUGH 50, INCLUSIVE
***HEARING ON MOTION IN RE: PRELIMINARY APPROVAL**
FILED BY:
<u>*TENTATIVE RULING:*</u>

The declaration of Daniel Padova establishes that "No Kid Hungry" is a campaign of Share Our Strength, Inc., which "is a 501(c)(3) nonprofit organization focusing on child hunger programs." It does not establish that it engages in "child advocacy." Some description of what the organization does that constitutes "advocacy" is needed to meet the statutory requirement. If there is an advocacy component, it needs to be so stated. Not every charitable organization, no matter how laudable its work, meets the requirement. The **matter is continued to February 5, 2026, with a supplemental declaration to be filed by February 2, 2026**.

8. 9:00 AM CASE NUMBER: C23-03009
CASE NAME: RONALD ABBS, JR. VS. DAVID BOLES
***HEARING ON MOTION IN RE: TO APPOINT SPECIAL MASTER**
FILED BY: S&J PROPERTIES, CONSTRUCTION, INC.
<u>*TENTATIVE RULING:*</u>

Appearances required to update the Court on the status of the motion, given that a stipulated order appointing a special master was entered on November 21, 2025.

9. 9:00 AM CASE NUMBER: C24-00136
CASE NAME: RONALD WEBSTER VS. GREGORY BROOKS
***HEARING ON MOTION IN RE: SANCTIONS 128.7, BY PLTF**
FILED BY:
<u>*TENTATIVE RULING:*</u>

<u>Introduction</u>

Before the Court is Plaintiff's Motion for Sanctions under CCP §§ 128.5 and 128.7.

For the reasons explained below, **<u>Plaintiff's Motion for Sanctions is denied.</u>**

<u>Procedural Background</u>

Plaintiff filed his initial lawsuit against IHSS In-Home Support Services and individual County employees Julie Peck, Yen Ko-Young, Tracy Murray, Sena Pierce-Morris and Ann Barrett ("County Defendants") on January 24, 2024. A first amended complaint ("FAC") followed on October 16, 2024. On or around December 29, 2024, a process server for the plaintiff dropped off the FAC for all the individual County employee defendants with Stacey Boyd, a Deputy Clerk at the Contra Costa County Clerk of the Board's office. Plaintiff then took their default on January 24, 2025.

On January 29, 2025, the County Defendants moved to set aside the default on the basis that they were not personally served by Plaintiff. In support of that assertion, a declaration from Stacey Boyd was submitted indicating she was not authorized to accept service on behalf of individuals, but she could accept service on behalf of the County itself. (See Dec. of Ronald Deshawn Webster, Ex. A, ¶¶2-4.) This is the declaration on which Plaintiff bases his motion for sanctions.

Plaintiff filed a second amended complaint ("SAC") on August 29, 2025, naming Stacey Boyd as a defendant in this matter and asserting a cause of action for negligence in allegedly providing incorrect information to the plaintiff regarding services, and signing the declaration in support of the County Defendants' motion to set aside the default. None of the individual Defendants have appeared in this matter, although the Court does note that Defendant Ms. Boyd has filed a special motion to strike based on the litigation privilege which is set to be heard on March 12, 2026.

Legal Standard for Sanctions Under CCP § 128.5 and 128.7

CCP §128.7 applies to signed papers filed in court and requires that papers are not filed for improper purposes, claims are warranted by law, and factual contentions have evidentiary support, only an attorney or unrepresented party may be sanctioned. It does not authorize sanctions against a represented party.

CCP §128.5, the party, attorney, or both, may be sanctioned. "Second, section 128.7 imposes a lower threshold for sanctions against an attorney. It requires only that the conduct be objectively unreasonable. But under section 128.5, there must also be a showing of subjective bad faith." (*In re Marriage of Reese & Guy* (1999) 73 Cal.App.4th 1214, 1221.) Notice for one section does not constitute notice under the other section. (Id.) In this matter, Plaintiff only makes passing reference to both sections, not expanding on the basis for his motion, making it difficult for respondents and the Court to determine which standard should be applied to this motion.

Analysis

Plaintiff's Supporting Law and Facts are Insufficient

A memorandum of points and authorities "must contain a statement of facts, a concise statement of the law, evidence and arguments relied on, and a discussion of the statutes, cases, and textbooks cited in support of the position advanced." (Cal Rules of Court, Rule 3.1113.)

Applicable to this matter is *Quantum Cooking Concepts, Inc. v. LV Associates, Inc*. (2011) 197 Cal.App.4th 927, which dealt with the same deficiencies in pleading. The moving party in *Quantum* was LV. In a post-trial motion they "merely quoted the statutory provisions" requiring overturning the judgment. (Id. at 933.) However, apart from the cursory citations, the motion contained none of the elements that Rule 3.1113(b) requires. There was no statement of the facts of the case to support the motion, no identification of the specific evidence or arguments on which the challenge relied, and LV did not identify specifically how the record showed that the damage award was excessive. (Id.) In reviewing this dearth of fact and law, the Second District stated that "the trial court had no obligation to undertake its own search of the record 'backwards and forwards to try to figure out how the law applies to the facts' of the case." (Id. at 934; See also *Chavez v. Netflix, Inc*. (2008) 162 Cal.App.4th 43, 51-52 [where appellant's motion was supported by deficient memorandum, trial court was justified in denying the motion on procedural grounds].) The Quantum Court concluded that "Rule 3.1113 rests on a policy-based allocation of resources, preventing the trial court from being cast as a tacit advocate for the moving party's theories by freeing it from any obligation to comb the record and the law for factual and legal support that a party has failed to identify or provide." (Quantum Cooking

Concepts, Inc., 197 Cal.App.4th at 934.)

In this motion, there is little to none of the required materials in the briefing in the scant three-page Memorandum of Points and Authorities. Plaintiff only cites to code sections 128.5 and 128.7, and not even to specific verbiage of the code sections. There are no citations to case law let alone discussions of case law, and no evidence is presented – only an assertion that evidence in support of the motion exists. (Webster Decl. ¶ 3.) The absence of legal authority and along with little to no factual or evidentiary support for the claimed relief, is enough to deny the motion.

Lack of Safe Harbor Period

Both CCP §§ 128.5 and 128.7 have a mandatory safe harbor provision where the Party intending to file for sanctions must serve the motion to the opposing side 21 days before filing it with the Court, allowing the other party to withdraw or correct the challenged document or conduct. (See CCP §§ 128.5(f) and 128.7(c)(2).) Plaintiff failed to demonstrate strict compliance with the mandatory safe harbor provision.

Conclusion

For the reasons analyzed above, **Plaintiff's Motion for Sanctions is denied.**

As of March 1, 2026, this case is assigned for all purposes to Department 10, the Honorable Julia Campins.

10. 9:00 AM CASE NUMBER: C24-00621
CASE NAME: LING TANDIAN VS. PRINCESS CRUISE LINES, LTD.
***HEARING ON MOTION IN RE: REQUEST FOR DISMISSAL**
FILED BY: TANDIAN, LING
****TENTATIVE RULING:****
Based on counsel's declaration, and without opposition, the **motion is granted**.

11. 9:00 AM CASE NUMBER: C24-01034
CASE NAME: TIYANA KIRBY VS. MAUREEN MICARIO MIRADOR
HEARING ON SUMMARY MOTION
FILED BY: MICARIO MIRADOR, MAUREEN
****TENTATIVE RULING:****

Before the Court is Defendant Maureen Micario Mirador ("Defendant" or "Mirador")'s motion for summary judgment ("MSJ"). The MSJ relates to Plaintiff Tiyana Kirby ("Plaintiff" or "Kirby")'s complaint for damages arising out of an auto accident. Defendant moves for summary judgment on the grounds that Plaintiff's claims are barred by a settlement and release she executed on October 26, 2023.

For the following reasons, the MSJ is **granted**.

Legal Standard

Code of Civil Procedure ("CCP") §§ 437c(o)(1) and 437c(p)(2) provide the relevant legal standard for deciding the Motion. Section 437c(o)(1) provides, in relevant part:

> A cause of action has no merit if one or more of the elements of the cause of action cannot be separately established, even if that element is separately pleaded.

Section 437c(p)(2) provides, in relevant part:

> A defendant or cross-defendant has met his or her burden of showing that a cause of action has no merit if that party has shown that one or more elements of the cause of action, even if not separately pleaded, cannot be established, or that there is a complete defense to that cause of action. Once the defendant or cross-defendant has met that burden, the burden shifts to the plaintiff or cross-complainant to show that a triable issue of one or more material facts exists as to the cause of action or a defense thereto. The plaintiff or cross-complainant shall not rely upon the mere allegations or denials of its pleadings to show that a triable issue of material fact exists but, instead, shall set forth the specific facts showing that a triable issue of material fact exists as to that cause of action or a defense thereto.

The party moving for summary judgment has the burden of persuasion to show there is no triable issue of material fact and thus it is entitled to judgment as a matter of law. (*Aguilar v. Atlantic Richfield Co*. (2001) 25 Cal.4th 826, 850.) Only if the moving party successfully meets this burden does the burden shift to the opposing party to make its own prima facie showing of the existence of a triable issue of material fact. (*Ibid*.; see also *Chern v. Bank of America* (1976) 15 Cal.3d 866, 873.) The scope of the defendant's initial burden is defined by the pleadings. (See *580 Folsom Assocs. v. Prometheus Dev. Co*. (1990) 223 Cal.App.3d 1, 18.)

<u>Brief Factual Background</u>

The facts are essentially undisputed. This case arises out of an April 13, 2022, car accident in Contra Costa County. (UMF 1 [subject to date correction].) Defendant Maureen Mirador rear-ended Plaintiff Tiyana Kirby. (UFM 2.) On October 26, 2023, Plaintiff signed a release which released any and all claims arising out of the accident in exchange for $15,000. (UMF 3; Beary Decl. at ¶ 10, Ex. D.) Plaintiff and counsel for Plaintiff understood that "the $15,000 was the policy limits and the only insurance available to satisfy Maureen Mirador's liability for causing the accident." (Beary Decl. at ¶ 8.)

Plaintiff subsequently learned of additional liability coverage available to Defendant Mirador. (Beary Decl. at ¶ 11.) Specifically, that Mirador had her own insurance coverage through an Auto Club policy with AAA that provided her with $100,000 in umbrella liability coverage for any auto accident caused by her negligence. (*Id*.)

Plaintiff filed her Complaint in Contra Costa County Superior Court on April 11, 2024. Defendant Mirador filed an Answer on November 13, 2024, asserting a general denial and seven affirmative defenses, including an affirmative defense that prior to filing her initial Complaint, Plaintiff entered into a settlement and released all claims arising from the accident.

On October 1, 2025, Plaintiff sent a written Notice of Rescission of the $15,000 Settlement and Release. (Beary Decl. at ¶ 12, Ex. E.)

<u>Analysis</u>

Defendant moves for summary judgment on the grounds that Plaintiff executed a settlement and release that bars her claims for damages arising out of the car accident. In opposition, Plaintiff argues that she rescinded the settlement. On reply, Defendant argues that Plaintiff cannot demonstrate “mistake” within the meaning of Civil Code § 1689(b)(1) such that she is entitled to rescission and that she is estopped from claiming rescission through the operation of laches.

“A party may rescind a contract if [the party’s] consent was given by mistake.” (*Donovan v. RRL Corp.* (2021) 26 Cal.4th 261, 278.) “The grounds for rescission are stated in … section 1689. One such ground exists when consent to a contract is given by ‘mistake.’ The term ‘mistake’ in … section 1689, however, is a legal term with a legal meaning. [¶] The type of ‘mistake’ that will support rescission is defined in … section 1577 (‘mistake of fact’) and … section 1578 (‘mistake of law’).” (*Hedging Concepts, Inc. v. First Alliance Mortgage Co*. (1996) 41 Cal.App.4th 1410, 1421; see also *Donovan*, at p. 278.)

Civil Code section 1567 states that an “apparent consent” to a contract is not “real or free when obtained through … mistake.” (Civ. Code § 1567(5).) A mistake “may be either of fact or law.” (Civ. Code § 1576.)

> Mistake of fact is a mistake, not caused by the neglect of a legal duty on the part of the person making the mistake, and consisting in:
>
> 1. An unconscious ignorance or forgetfulness of a fact past or present, material to the contract; or,
> 2. Belief in the present existence of a thing material to the contract, which does not exist, or in the past existence of such a thing, which has not existed.

(Civ. Code § 1577.)

Civil Code section 1691 provides the basic procedural requirements for rescission:

> [T]o effect a rescission a party to the contract must, promptly upon discovering the facts which entitle him to rescind if he is free from duress, menace, undue influence or disability and is aware of his right to rescind:
>
> (a) Give notice of rescission to the party as to whom he rescinds; and
>
> (b) Restore to the other party everything of value which he has received from him under the contract or offer to restore the same upon condition that the other party do likewise, unless the latter is unable or positively refuses to do so.
>
> When notice of rescission has not otherwise been given or an offer to restore the benefits received under the contract has not otherwise been made, the service of a pleading in an action or proceeding that seeks relief based on rescission shall be deemed to be such notice or offer or both.

(Civ. Code § 1691.)

In the present case, Plaintiff claims she was mistaken as to the breadth of available coverage when she executed the settlement agreement.

In *Donovan*, the Supreme Court adopted the approach of section 153 of the Second Restatement of Contracts and held that a contract “may be rescinded on the ground of unilateral mistake of fact” when the party seeking rescission establishes the following: “(1) the defendant [or other party seeking rescission] made a mistake regarding a basic assumption upon which the defendant made the contract; (2) the mistake has a material effect upon the agreed exchange of performances that is adverse to the defendant; (3) the defendant does not bear the risk of the mistake; and (4) the effect of the mistake is such that enforcement of the contract would be unconscionable." (*Id*. at p. 282.)

In *Donovan*, the issue was whether a car dealer could validly rescind a contract formed after, due to a newspaper publisher's error, an advertisement listed a vehicle for sale at the price of $25,995 instead of $37,995. (*Ibid*.) In *Donovan* the parties "vigorously dispute[d]" whether the defendant car dealer "should bear the risk of its mistake." (*Donovan*, *supra*, 26 Cal.4th at p. 283.) The Supreme Court quoted section 154 of the Restatement, which states: "A party bears the risk of a mistake when [¶] (a) the risk is allocated to [the party] by agreement of the parties, or [¶] (b) [the party] is aware, at the time the contract is made, that [it] has only limited knowledge with respect to the facts to which the mistake relates but treats [the] limited knowledge as sufficient, or [¶] (c) the risk is allocated to [the party] by the court on the ground that it is reasonable in the circumstances to do so." (Rest.2d Contracts, § 154.) The court stated that neither of the first two factors applied and considered whether it was reasonable to allocate the risk of the mistake in the advertisement to the defendant. (*Donovan*, at p. 283.)

On the facts of *Donovan*, the Supreme Court held that the car dealer validly rescinded the contract. The dealer had failed to review a proof sheet and had instead relied on the newspaper's staff to proofread the advertisement; this "might constitute negligence," the court reasoned, but "it does not involve a breach of defendant's duty of good faith and fair dealing that should preclude equitable relief for mistake. In these circumstances, it would not be reasonable for this court to allocate the risk of the mistake to defendant." (*Id*., at p. 290.) Because enforcement of the contract with the erroneous price would have been unconscionable, the defendant dealer was entitled to rescission of the contract on the ground of unilateral mistake of fact. (*Id*. at pp. 293–294.)

Under *Donovan*, ordinary negligence does not necessarily bar relief through rescission in all circumstances. (*Id*. at p. 283.) But a unilateral mistake of fact is a bar to rescission when, under the circumstances, the risk of the mistake must be allocated to the party seeking rescission. (*Ibid*.) Such is the case here.

Here, Plaintiff's counsel knew that Plaintiff was injured in an accident by a car owned by Sergio Morales Chico and driven with permission by Defendant Maureen Micario Mirador. (Beary Decl. at ¶ 2.) Counsel for Plaintiff took no apparent action to assess whether Defendant Mirador had any independent insurance that might apply, instead relying on the representation of non-party Chico's insurer that the $15,000 permissive driver coverage was the only liability insurance available to cover Plaintiff's claims. (*Id*. at ¶ 7.) Counsel for Plaintiff later learned after instituting a claim for underinsured motorist coverage to Plaintiff's own insurer, AAA, that Defendant Mirador had coverage through an Auto Club policy that provided $100,000 in umbrella liability coverage for any auto accident caused by her negligence. (*Id*. at ¶ 11.) There is no indication that the insurance adjuster for Integon National Insurance Company was aware of Maureen Micario Mirador's additional insurance.

When Plaintiff signed the release, her attorney had failed to investigate whether Mirador had additional independent insurance. Under the circumstances, the risk of this particular mistake must be allocated to Plaintiff.

The Court also notes the well-established principle that the failure to read or understand the terms of a settlement agreement or other contract is not a unilateral mistake sufficient to allow a party to rescind the agreement. (See, e.g., *Estate of Eskra* (2022) 78 Cal.App.5th 209, 225-230; *Stewart v. Preston Pipleline Inc*. (2005) 134 Cal.App.4th 1565, 1587-1589; see also *Casey v. Proctor* (1963) 59 Cal.2d 97, 104-105.) The issue here is not the failure to read or understand the release, but these cases establish that, under some (but certainly not all) circumstances, negligence can operate as a neglect of legal duty sufficient allocate the risk of mistake to the negligent actor.

Because the Court concludes that Plaintiff's asserted rescission of the release agreement is not valid as a matter of law, it need not reach Defendant's additional argument that Plaintiff waived her right to rescission and is barred by laches in light of her nearly two-year delay in claiming rescission.

Defendant's motion for summary judgment is **granted**.

Evidentiary Objections

Defendant's objections to Plaintiff's counsel's declaration in her reply do not comply with California Rule of Court 3.1354(b) ["All written objections to evidence must be served and filed separately from the other papers in support of or in opposition to the motion."]. Consequently, the Court will not rule on them. (See *Hodjat v. State Farm Mutual Automobile Ins. Co*. (2012) 211 Cal.App.4th 1, 8-9 trial court did not abuse its discretion in refusing to rule on evidentiary objections which did not comply with Cal. Rules of Court, rule 3.1354(b)].)

12. 9:00 AM CASE NUMBER: C24-01848
CASE NAME: JOSE GONZALEZ DE LEON VS. CITY OF RICHMOND
HEARING ON DEMURRER TO: 1ST AMENDED COMPLAINT
FILED BY: CITY OF RICHMOND
TENTATIVE RULING:
Introduction
Before the Court is Defendant City of Richmond's Demurrer. The Demurrer relates to Plaintiff Jose Gonzalez De Leon's Complaint for general negligence and violation of Vehicle Code § 17001.

For the following reasons, **the Demurrer is overruled.**

Meet and Confer Requirement

Defendant satisfied its meet and confer requirement regarding their demurrer in detailing their efforts in reaching out to Plaintiff's counsel after the filing of the FAC. (Gilbert Decl. at ¶¶ 3-4.) However, the parties were unable to reach an agreement and thus the motion was brought. (Gilbert Decl. at ¶¶ 3-4.)

Request for Judicial Notice

Defendant City of Richmond ("City" or "Defendant") hereby requests the Court take judicial notice of one document, Richmond Police Department Policy 309 – Vehicle Pursuits. Exhibit A is proper for judicial notice pursuant to Evidence Code sections 452, subdivisions (b), which provides that courts may take judicial notice of a public agency's regulations and official documents. (*Longshore v. County of Ventura* (1979) 25 Cal.3d 14 [finding that it is appropriate to take judicial notice of county salary ordinances].)

Judicial notice of Defendant's Exhibit A: Richmond Police Department Policy 309 – Vehicle Pursuits is granted.

Factual Background

On August 15, 2023, 12-year-old Jose Gonzalez De Leon, Plaintiff, was a passenger in a 2013 white Honda Civic traveling south on Marina Way Street in Richmond, California. (FAC ¶ 10.) As he crossed the intersection at Ohio Avenue, a 2000 white Acura TL ran a red light, striking the Honda Civic. (FAC ¶ 11.) This collision resulted from a high-speed police chase involving a Richmond Police patrol car and the Acura TL immediately before the incident. (FAC ¶ 12.) The collision took place less than half a mile away from an elementary school and high school. (FAC ¶ 13.) The collision caused injuries to 12-year-old Jose Gonzalez De Leon who spent weeks in the hospital, followed by months of slow recovery and physical therapy, with medical care continuing a year and a half later, causing Plaintiff to miss the entire fall semester from August 2023 through December 2023. (FAC ¶ 14.)

Procedural Background

The first Demurrer to Plaintiff's Complaint was sustained as to both causes of action with leave to amend. This Court outlined the deficiencies in both of Plaintiff's causes of action in the initial Complaint. Both the initial Complaint and the First Amended Complaint (FAC) have a cause of action for negligence and a cause of action for Violation of the Vehicle Code, although the name of the Vehicle Code cause of action was changed.

This Court mainly took issue with Plaintiff's Complaint not pleading any facts that would challenge or disprove any applicable immunities. Plaintiff took heed and pled facts that if true lead to a statutory basis of liability.

Legal Standard

"The function of a demurrer is to test the sufficiency of the complaint as a matter of law." (*Holiday Matinee, Inc. v. Rambus, Inc*. (2004) 118 Cal.App.4th 1413, 1420.) A complaint "is sufficient if it alleges ultimate rather than evidentiary facts" (*Doe v. City of Los Angeles* (2007) 42 Cal.4th 531, 550 ("*Doe*")), but the plaintiff must set forth the essential facts of his or her case "with reasonable precision and with particularity sufficient to acquaint [the] defendant with the nature, source and extent" of the plaintiff's claim. (*Doheny Park Terrace Homeowners Assn., Inc. v. Truck Ins. Exchange* (2005) 132 Cal.App.4th 1076, 1099.) Legal conclusions are insufficient. (*Id*. at 1098–1099; *Doe* at 551, fn. 5.) The Court "assume[s] the truth of the allegations in the complaint but do[es] not assume the truth of contentions, deductions, or conclusions of law." (*California Logistics, Inc. v. State of California* (2008) 161 Cal.App.4th 242, 247.)

To state a cause of action against a public entity, "the general rule that statutory causes of action must be pleaded with particularity is applicable. Every fact essential to the existence of statutory liability must be pleaded." (*Richardson-Tunnell v. School Ins. Program* (2007) 157 Cal.App.4th 1056, 1061.) Plaintiff's counsel must specifically identify the grounds for statutory liability against a public entity, including citing the statute. (*Searcy v Hemet Unified Sch. Dist.* (1986) 177 CA3d 792, 802 (child injured by automobile near school only alleged "enactments" in complaint).) A plaintiff must also allege facts to show that the "cause of action lies outside the breadth of any applicable statutory immunity." (*Soliz v. Williams* (1999) 74 Cal.App.4th 577, 585.) However, these rules do not deprive the plaintiff of the benefit of the general principle that the courts should liberally construe a complaint and generously allow amendments to cure deficiencies. (*Nestle v City of Santa Monica* (1972) 6 Cal.3d 920; *Keyes v Santa Clara Valley Water Dist.* (1982) 128 Cal.App.3d 882, 885.)

Applicable Law

The Government Claims Act (Govt. Code §§ 810–996.6) draws a clear distinction between the liability of a public entity based on its own conduct (direct liability), and the liability arising from the conduct of a public employee (vicarious liability). (*Zelig v County of Los Angeles* (2002) 27 Cal.4th 1112, 1127.)

Government Code § 815 establishes the general rule of limiting liability of a public entity based on its own conduct as follows, "Except as otherwise provided by statute [¶] (a) A public entity is not liable for an injury, whether such injury arises out of an act or omission of the public entity or a public employee or any other person." (Gov. Code § 815(a).) Thus, direct liability for common law claims is not permissible against a public entity. (See, e.g., *Tolan v. State of California ex rel. Dept. of Transportation* (1979) 100 Cal.App.3d 980, 986; *Van Kempen v. Hayward Area Park, etc., Dist.* (1972) 23 Cal.App.3d 822, 825.) Moreover, the Court of Appeal has explained, "a public entity's duty of care is only that specifically provided by statute." (*Tolan*, 100 Cal.App.3d at p. 986.)

The general principle of derivative immunity provided by Government Code § 815.2(b) has statutory qualifications authorized by the section's introductory phrase ("Except as otherwise provided by statute"). (See Legislative Committee Comment to Govt C §815.2.) This section expressly makes the doctrine of respondeat superior applicable to public employers. (*C.A. v William S. Hart Union High Sch. Dist.* (2012) 53 Cal.4th 861; *Eastburn v Regional Fire Protection Auth.* (2003) 31 Cal.4th 1175, 1183.)

<u>Analysis</u>

Redundancy of Claims

Defendant contends that since both claims allege liability under Vehicle Code § 17001, that one of the claims must be dismissed on this basis alone. (MPA at p. 7: 19-23.)

Plaintiff responds that FAC's First Cause of Action alleges general negligence as well as a violation of Vehicle Code §21056, while the second cause of action is specifically predicated upon Vehicle Code § 17001 and pleads additional facts to address the immunity provided by Vehicle Code §17004.7. (Oppo at p. 3: 14-23.) More specially, "[t]he First Cause of Action alleges the breach of a statutorily mandated standard of conduct, the duty to drive with "due regard," which serves as a basis for the underlying negligence. (Veh. Code, §21056.) The Second Cause of Action alleges the statutory mechanism for direct entity liability and pleads around the City's claimed immunity with additional factual allegations regarding the City's failure to adopt, promulgate, and train officers on a compliant policy. (Veh. Code, §17001, §17004.7.) Thus, the causes of action are not redundant. (Oppo at p.3: 24-28.)

The Court agrees with Plaintiff that the claims are not redundant.

Plaintiff has Pleaded a Valid Exception to Immunity

Negligence

To successfully plead a cause of action for negligence against a public entity, the plaintiff usually must allege statutory grounds for the public entity's vicarious liability for the acts or omissions of a public employee (Govt. Code §815.2) or an independent contractor (Govt. Code §814). To plead vicarious liability, the plaintiff must specifically identify the employee whose conduct is sought to be attributed to the public entity. (*Munoz v City of Union City* (2004) 120 Cal.App.4th 1077,1113; But see *Tom Jones Enters., Ltd. v County of Los Angeles* (2013) 212 Cal.App.4th 1283, 1293 (failure to identify employee in first amended complaint was not fatal pleading defect).) The plaintiff must also plead facts that show that the employee's acts or omissions fell within the scope of employment. (*Hoff v Vacaville Unified Sch. Dist.* (1998) 19 C4th 925, 932; Govt. Code § 815.2(a).) Plaintiff's counsel must specifically identify the grounds for statutory liability against a public entity, including citing the statute. (*Searcy v Hemet Unified Sch. Dist.* (1986) 177 Cal.App.3d 792, 802 (child injured by automobile near school only alleged "enactments" in complaint).)

Here, Plaintiff identified the employee whose conduct is sought to be attributed to the public entity and plead facts alleging the employee's acts fell within the scope of employment. (FAC ¶¶ 19-20.) Plaintiff cites to Vehicle Code § 21056 which provides an exception, which does not relieve a driver of an emergency vehicle from the duty to drive with due regard for the safety of all persons using the highway, nor protect him from the consequences of an arbitrary exercise of the privileges granted in section 21055. (FAC ¶19.)

The Demurrer is overruled as to the Negligence cause of action.

Vehicle Code § 17001

Defendant takes the position that despite Plaintiff's attempts to plead around this immunity, the City is entitled to immunity under Vehicle Code section 17004.7, as demonstrated by the Richmond Police Policy 309 - Vehicle Pursuits. (RJN Ex. A.) Defendant argues that While Plaintiff alleges that the City failed to adopt or implement a policy to assert this immunity, the Richmond Police Policy 309 - Vehicle Pursuits clearly demonstrates otherwise. The Court disagrees.

Taking judicial notice that a police policy exists does not conclusively prove that Defendant is immune from liability for civil damages under Vehicle Code § 17004.7(b)(1). Specifically, the code calls for the adoption and promulgation of a written policy for vehicular pursuits. Analyzing whether the written policy was properly adopted and promulgated is an issue of fact that is not proper to assess at the pleading stage.

"Vehicle Code §17001 creates a statutory exception to public entities' general tort immunity: 'A public entity is liable for death or injury to person or property proximately caused by a negligent or wrongful act or omission in the operation of any motor vehicle by an employee of the public entity acting within the scope of his employment.'" (*Ramirez*, supra, 5 Cal.5th at 999, quoting Veh. Code, §17001.) Regarding injuries caused by fleeing suspects during police pursuits, "'Section 17004.7 in turn limits the liability that ... [Vehicle Code] section 17001 otherwise permits by affording immunity to public agencies that adopt and implement appropriate vehicle pursuit policies.'" (*Ramirez*, supra, 5 Cal.5th at 999, quoting *Ramirez v. City of Gardena* (2017) 14 Cal.App.5th 811, 818.)

Plaintiff's FAC alleges that the City failed to adopt and promulgate a written vehicle pursuit policy that complied with all twelve minimum standards mandated by Vehicle Code §17004.7, subdivision (c). (FAC, ¶ 25(a).) The FAC further alleges that the City failed to provide the required regular and periodic annual training regarding its vehicle pursuit policy to its peace officers, including Officer C. Fuller. (FAC, ¶ 25(b).) Moreover, the FAC asserts that any annual training provided by the City was inadequate and failed to meet the minimum standards required by law, including the training guidelines established by the Commission on Peace Officer Standards and Training (POST). (FAC, ¶ 25(c).) Finally, the FAC alleges that the City failed to meaningfully implement and enforce its policy, including failing to ensure systemic compliance with the requirement that all peace officers certify in writing that they have received, read, and understood the policy, as mandated by Vehicle Code §17004.7, subdivision (b)(2). (FAC, ¶ 25(d).) Such allegations create factual disputes that must be accepted as true at the stage and are not overcome by City's production of a written policy. (See *Ketchum v. State* (1998) 62 Cal.App.4th 957, 961; *Flores v. City of San Diego* (2022) 83 Cal.App.5th 360, 367; *Ramirez v. City of Gardena* (2018) 5 Cal.5th 995, 1002.)

The Demurrer is overruled as to the Vehicle Code § 17001 cause of action.

Conclusion

For the reasons explained above, **the Demurrer is overruled.**

As of March 1, 2026, this case is assigned for all purposes to Department 10, the Honorable Julia Campins.

13. 9:00 AM CASE NUMBER: C24-03374
CASE NAME: MARVIN GONZALEZ VS. JESUS MATA
***HEARING ON MOTION IN RE: LEAVE TO FILE FIRST AMENDED COMPLAINT**
FILED BY: GONZALEZ, MARVIN TEMAL
****TENTATIVE RULING:****

Plaintiff's motion, which is not opposed, is granted. Plaintiff is granted leave to file the proposed First Amended complaint (which is attached to the Haulk Declaration as Exhibit 3), **within ten days of notice of entry of this order**.

As of March 1, 2026, this case is assigned for all purposes to Department 16, the Honorable Benjamin Reyes.

14. 9:00 AM CASE NUMBER: C25-01327
CASE NAME: MARIA ESTANTE VS. NOCD FLORIDA BEHAVIORAL HEALTH, P.A.
***HEARING ON MOTION IN RE: TO SET ASIDE DEFAULT**
FILED BY: NOCD FLORIDA BEHAVIORAL HEALTH, P.A.
****TENTATIVE RULING:****

Parties shall appear. The motion to set aside default, filed by NOCD Florida Behavioral Health, P.A. and NOCD, Inc. (collectively "corporate defendants") is **conditionally granted**. Corporate defendants shall electronically submit for filing a declaration of counsel with an attached proposed pleading on or before the hearing on January 29, 2026.

Background and Analysis

Plaintiff Maria Rheba Estante worked for defendant NOCD Florida Behavioral Health, P.A. from approximately March 2022 through May 2023 as a Licensed Marriage and Family Therapist. Plaintiff was initially engaged as a contractor, but later converted to an employee who worked remotely. Following her termination, plaintiff threatened to sue defendants, retaining counsel. That counsel later sent a "disengagement letter," indicating they would no longer represent plaintiff. (Declaration of Michelle Joyce, ¶8.) Following the disengagement, plaintiff filed this action through new counsel in May of 2025.

In this action, plaintiff alleges six causes of action: including (1) Whistleblower Retaliation in Violation of Labor Code § 1102.5; (2) Wage and Hour Violations Under Labor Code § 203 (Failure To Pay All Wages Due); (3) Wrongful Termination of Employment in Violation of Public Policy; (4) Intentional Infliction of Emotional Distress; (5) Violation of Business and Professions Code § 17200, et seq.; and (6) Violations of Business and Professions Code § 510.

The complaint was served on corporate defendants in June. Corporate defendants failed to timely respond and plaintiff took their defaults in August. The present motion to set aside the defaults was filed in October, not more than five months after service.

Code of Civil Procedure § 473 (b) states, in relevant part:

> The court may, upon any terms as may be just, relieve a party or his or her legal representative from a judgment, dismissal, order, or other proceeding taken against

him or her through his or her mistake, inadvertence, surprise, or excusable neglect.

Code of Civil Procedure section 473 is a remedial statute to be "applied liberally" in favor of relief if the opposing party will not suffer prejudice. The law strongly favors trial and disposition on the merits. "Unless inexcusable neglect is clear, the policy favoring trial on the merits prevails." (*Minick v. City of Petaluma* (2016) 3 Cal.App.5th 15, 24, quoting *Elston v. City of Turlock* (1985) 38 Cal.3d 227, 235). "Because the law favors disposing of cases on their merits, any doubts in applying section 473 must be resolved in favor of the party seeking relief from default." (*Rappleyea v. Campbell* (1994) 8 Cal.4th 975, 980, citations omitted.)

The evidence, as set forth in the Declaration of Michelle Joyce, demonstrates that corporate defendants' processes for handling service issues were insufficient here. The email "notification" from Corporation Service Company was apparently set up to go to someone uninvolved with this sort of matter. That person, in turn, used an "online platform" (Slack) to forward the documents to others. This sort of communication about important litigation documents lacks the level of formality this Court would typically expect. Perhaps as a result, these processes did not succeed in timely notice to the appropriate person(s), demonstrating organizational neglect in the handling of important litigation documents. Still, this does not amount to anything besides mistake, inadvertence, surprise, or excusable neglect.

Code of Civil Procedure 473 (b) provides, in relevant part (emphasis added):

> The court may, upon any terms as may be just, relieve a party or his or her legal representative from a judgment, dismissal, order, or other proceeding taken against him or her through his or her mistake, inadvertence, surprise, or excusable neglect. *Application for this relief shall be accompanied by a copy of the answer or other pleading proposed to be filed therein, otherwise the application shall not be granted*, and shall be made within a reasonable time, in no case exceeding six months, after the judgment, dismissal, order, or proceeding was taken.

The timing here is not an issue. Corporate defendants acted promptly and within six months after their default had been entered. While plaintiff contends the showing does not show any neglect to be excusable, the Court resolves the issue in defendants' favor.

Still, the procedural requirements of this motion have not been met. Corporate defendants attach a proposed motion to compel arbitration to their motion to set aside default, but "pleadings allowed in civil actions are *complaints, demurrers, answers, and cross-complaints*." (Code Civ. Proc., § 422.10, emphasis added.) Having received no proposed "pleading," the Court may not presently set aside the default.

Accordingly, so long as defendants submit a proposed pleading (in which they may assert a right to arbitration to counter any waiver argument), the Court intends to grant the motion. Should defendants fail to submit a proposed answer prior to the hearing, the Court will continue the hearing to allow more time for them to do so.

As of March 1, 2026, this case is assigned for all purposes to Department 10, the Honorable Julia Campins.

15. 9:00 AM CASE NUMBER: C25-01327
CASE NAME: MARIA ESTANTE VS. NOCD FLORIDA BEHAVIORAL HEALTH, P.A.
***MOTION/PETITION TO COMPEL ARBITRATION**
FILED BY: CONLEY, DR. SARA
TENTATIVE RULING:

The motion to compel arbitration, filed by defendant, Dr. Sara Conley, appears to invoke an agreement signed with corporate defendant NOCD Florida Behavioral Health, P.A. (See Declaration of Matthew Thorne, Ex. A.)

Accordingly, a motion to compel arbitration in reliance on the agreement is best considered in conjunction with the anticipated motion by that defendant. Because NOCD Florida Behavioral Health, P.A. has made it clear that it intends to file such motion once its default is set aside (by attaching it to the Motion to Set Aside Default), the Court **re-sets the hearing date on this motion to March 26, 2026, 9:00 a.m.,** in order to permit both motions to be heard on the same date.

To avoid confusion and streamline the clerk's calendaring of the motions on the same date (March 26, 2026), corporate defendants (NOCD Florida Behavioral Health, P.A. and NOCD, Inc.) shall make reference to this order when filing their motion to compel arbitration.

As of March 1, 2026, this case is assigned for all purposes to Department 10, the Honorable Julia Campins.

16. 9:00 AM CASE NUMBER: C25-01943
CASE NAME: ROGER BAILEY VS. SYNGENTA AG
***HEARING ON MOTION IN RE: TO BE RELIEVED AS COUNSEL**
FILED BY:
TENTATIVE RULING:
The **motion is granted**. Counsel is directed to serve the order relieving counsel in compliance with CRC 3.1362(d). **Counsel is not formally relieved until the order is served on the client and proof of service is filed with the court**.

17. 9:00 AM CASE NUMBER: C25-02669
CASE NAME: CORINNE REES VS. SAMIR ROHAYEM
***HEARING ON MOTION IN RE: MANDATORY TRIAL SETTING PREFERENCE PURSUANT TO CAL. CIV. PROC. CODE 36**
FILED BY: ROHAYEM, SAMIR
TENTATIVE RULING:
The moving papers establish adequate grounds for mandatory preference and there is no opposition. Jury trial is set for April 5, 2026, 10:00 a.m., with an Issue conference March 20, 2026, 9:00 a.m. As of March 1, 2026, the matter is assigned for all purposes to Department 10, the Honorable Julia Campins.

18. 9:00 AM CASE NUMBER: MSC20-01863
CASE NAME: JACKSON VS ANOVA CENTER
***HEARING ON MINOR'S COMPROMISE**

FILED BY:
TENTATIVE RULING:*
Counsel to appear (by zoom is sufficient). For good cause, appearance of the claimant and the guardian ad litem is waived.

19. 9:00 AM CASE NUMBER: MSC20-01863
CASE NAME: JACKSON VS ANOVA CENTER
***HEARING ON MOTION IN RE: (REDACTED) SEAL AND POINTS AND AUTHORITES IN SUPPORT OF MOTION TO SEAL**
FILED BY:
TENTATIVE RULING:*
Parties to appear (by zoom is sufficient).

20. 9:00 AM CASE NUMBER: MSC20-01963
CASE NAME: NORA CHAVEZ VS GAWFCO ENTERPRISES
***HEARING ON MOTION IN RE: ORDER DIRECTING COMPLIANCE WITH BELAIRE WEST NOTICE PROCESS**
FILED BY: CHAVEZ, NORA
TENTATIVE RULING:*
Plaintiff moves for an order compelling defendant to comply with the Belaire-West notice process. Defendant opposes on the ground that such disclosure is precluded by the California Consumer Privacy Act of 2018 and the California Privacy Rights Act of 2020. Defendant further contends that the "opt-out" process should be changed to an "opt-in" process.

The CCPA does not preclude use of the *Belaire-West* notice process, because compliance with court-ordered discovery, at a minimum, constitutes "defending legal claims." (Civil Code § 1798.145(a)(1)(E).)

Moreover, in *Williams v. Superior Court* (2017) 3 Cal.5th 531, 553, the court noted that while home contact information "is generally considered private, the second *Hill* requirement that a reasonable expectation of private in the particular circumstances is not met." It added that "[w]e doubt Williams's fellow employees would expect that information to be withheld from a plaintiff seeking to prove labor law violations committed against them and to recover civil penalties on their behalf." (*Id*.)

As to converting the "opt-out" process to an "opt-in" process, in *Williams* the Supreme Court specifically approved of the "opt-out" process. It stated that "the *Belaire-West* trial court was correct to order disclosure, subject to employees being given notice of the action, assurance that they were under no obligation to talk to plaintiffs' counsel, and an opportunity to opt out of disclosure by returning an enclosed postcard." (*Id*.)

Plaintiff's motion is granted.

As of March 1, 2026, this case is assigned for all purposes to Department 16, the Honorable Benjamin Reyes.

21. 9:00 AM CASE NUMBER: MSC21-01583
CASE NAME: CASTILLO VS. CUPERTINO ELECTRIC
HEARING IN RE: MOTION FOR SUMMARY JUDGMENT SET BY THE COURTROOM BY STIPULATION OF PARTIES (COUNSEL TO SUBMIT MOTION VIA E-FILE)
FILED BY:
TENTATIVE RULING:*

Before the Court is Defendants Cupertino Electric Inc. and Jose Alfredo Fuentas Vargas' Motion for Summary Adjudication.

For the following reasons, Defendant's MSA is **denied** as discussed below.

Overview of Allegations and Issues

This matter pertains to an automobile accident that occurred on August 14, 2019. On that date, it is alleged that Defendants caused their motor vehicle to collide with Plaintiff's vehicle, causing him severe injury. It is alleged that the injuries sustained in the accident directly led to Plaintiff being forced to accept early medical disability retirement.

Plaintiff is a Marine who enlisted in August 2008. He was deployed to the Middle East between 2008 and 2015. He suffered several injuries during those deployments, none of which were deemed serious enough to warrant early medical disability retirement. Plaintiff was on Special Duty assignment in San Francisco from 2016 to 2019. It was during this assignment that he was involved in the automobile accident at issue in this suit.

At the time of the accident, Plaintiff had approximately eleven years of service. If Plaintiff had been able to serve a full 20 years, he would have been eligible to receive retirement pay based on his rank and time served. Plaintiff had every intention of staying enlisted in the Marines until at least his 20-year anniversary to be eligible for such benefits. The only reason he did not fulfill the 20 years was due to his early forced disability retirement.

For purposes of this motion, the above is undisputed. The issue before the Court is limited to the interplay of the disability benefits Plaintiff currently receives and the retirement benefits he contends he would have received if he completed his 20 years. Defendants argue that Plaintiff's recovery should be limited to the difference between the regular pension he would have received and the disability person he is currently receiving.

Plaintiff argues that if he was able to complete his 20 years of service he would be entitled to ***both*** retirement pay and his disability compensation. As such, Defendants should not be able to get a credit for the amount of his disability compensation.

Standard for Summary Adjudication

"A party may move for summary adjudication as to one or more causes of action within an action … if the party contends that the cause of action has no merit…." (California Code of Civil Procedure ("CCP") § 437c (f)(1).) A "party may move for summary adjudication of a legal issue or a claim for damages other than punitive that does not completely dispose of a cause of action, affirmative defense, or issue of duty," with the Court's approval.

On September 4, 2025, the Court granted the Parties' request to summarily adjudicate the collateral source issue regarding disability benefits.

A defendant "has met his or her burden of showing that a cause of action has no merit if the party has shown that one or more elements of the cause of action, even if not separately pleaded, cannot be established, or that there is a complete defense to the cause of action." (CCP § 437c (p)(2).) Once the defendant "has met that burden, the burden shifts to the plaintiff … to show that a triable issue of one or more material facts exists as to the cause of action or defense thereto." (*Ibid.*) The plaintiff "shall not rely upon the allegations or denials of its pleadings to show that a triable issue of material fact exits but, instead, shall set forth the specific facts showing that a triable issue of material fact exists as to the cause of action or a defense thereto." (*Ibid.*)

Initial Considerations

Electronic Bookmarks

"[E]lectronic exhibits ***must include*** electronic bookmarks with links to the first page of each exhibit and with bookmark titles that identify the exhibit number or letter and briefly describe the exhibit." (Cal. R. Ct. 3.1110 (f)(4) emphasis added.) Plaintiff's filing includes six exhibits spanning approximately 60 pages which are untitled, not attached to a declaration or other document, and do not include electronic bookmarks at all, must less ones that "briefly describe the exhibit." The Declaration of William Bogdan purportedly attaches two exhibits, yet no electronic bookmarks are included for those exhibits.

Failure to include this required information increased the Court's workload. Counsel is reminded to comply with the Rules of Court going forward.

Missing Exhibits

The Declaration of William Bogdan indicates that two exhibits are attached, a copy of the complaint (Ex. A) and excerpts from the deposition of Andrew Castillo (Ex. B). The Court's version of the document does not contain Exhibit B, *i.e.* no deposition exhibits are included. It is unclear what excerpts were meant to be attached as the Opposition papers do not reference any deposition citations. As the deposition excerpts do not appear to be material to the opposition, the Court will rule on the motion as filed.

Opposition Separate Statement

Plaintiff did file his own Statement of Undisputed Facts which includes 25 additional facts of his own. Ther are a few problems with the Separate Statement. First, it does not include a response to Defendant's Separate Statement. Including an opposition to the Separate Statement is required under the Code. (CCP 437c (b)(3).) In fact, failure to provide one "may provide a sufficient ground, in the court's discretion, for granting the motion." (*Ibid.*)

Second, as to Plaintiff's purported material facts, "[e]ach material fact contended by the opposing party to be disputed shall be followed by a reference to the supporting evidence." (Cal. Code Civ. Proc. § 437c (b)(3).) Only the first four of Plaintiff's purported facts include citations to evidence. As the others do not include citations to evidence, they are not properly established and will not be considered by the Court.

Amended Separate Statement

On Reply, Defendants indicate that while Plaintiff filed his opposition papers on January 9, he did not serve them until January 12 due to computer problems. They also noted that the service on January 12 was "followed by service of an amended separate statement on January 14." The Court notes that while an amended separate statement may have been served on January 14, no such document was filed with the Court. [**The Court reached out to receive a copy of the document but was not provided with one prior to the drafting of this tentative ruling.**]

Sur-Reply

On January 1, 2026, Plaintiff filed a "Sur-Reply to Defendants' Reply…." California Code of Civil Procedure section 437c – which governs summary judgment/adjudication motions – provides for an opening motion, opposition, and reply. There is no allowance for a 'sur-reply.' (Cal. Code Civ. Proc. 437c (b).) In addition, there is no provision in the Code of Civil Procedure, generally, for the filing of a 'sur-reply' (no matter how titled). The decision whether to consider such papers is within the discretion of the trial court. (*Guimei v. General Electric Co.* (2009) 172 Cal.App.4th 689, 704.) The Court declines to exercise such discretion and will not consider Plaintiff's Sur-Reply as he failed to seek leave of Court to file such a document.

Analysis

Defendants argue that the collateral source rule does not bar evidence of Plaintiff's disability payments in connection with his damages claims, relying on the holding in *Rotolo Chevrolet v. Superior Court* (2003) 105 Cal.App.4th 242.

In *Rotolo*, the plaintiff was injured on the job and compelled to retire from his position as a fire captain due to his injuries. (*Id.* at 244.) Plaintiff sought to introduce evidence of the amount of *regular* retirement benefits that he lost due to his premature retirement. (*Ibid.*) Defendants sought to introduce evidence of the amount of *disability* retirement benefits that Plaintiff had and would receive – which would be used to offset the amount he expected to receive in *regular* retirement. (*Ibid.*) Plaintiff sought to exclude that evidence.

The *Rotolo* court noted that plaintiff's expert testified he would have received approximately $873,000 in retirement benefits, and that he sought to claim that amount in damages. Defendants opposed the motion, pointing out that the expert also testified that plaintiff expected to receive approximately $842,000 in *disability* retirement pay. As such, plaintiff would actually only suffer a new loss of about $31,000.

The trial court excluded the evidence under the 'collateral source rule.' "Simply stated the rule is that 'if an injured party receives some compensation for his injuries from a source wholly independent of the tortfeasor, such payment should not be deducted from the damages which the plaintiff would otherwise collect from the tortfeasor.'" (*Id.* at 245.) The doctrine "covers payments such as pensions paid to a plaintiff who, as a result of his injuries, can no longer work." (*Ibid.*)

The Court of Appeal reversed. The Court noted that the introduction of the *disability* payments were not admissible to offset the amount plaintiff would have received for work he would have performed but for his injuries. As explained:

> With respect to his lost earnings, the pension benefits clearly are a collateral source and cannot reduce Staudt's damages. If Staudt provides evidence that he would have worked for five more years at an average salary of $60,000 per year, he will be

> entitled to damages in the total sum of $300,000 despite the fact that he is receiving pension benefits. Here, there is no dispute

The fact that plaintiff would receive a 'double recovery' due to the collateral source doctrine "has not been deemed significant," and thus applies to the above situation. The double-recovery begin

The problem, the Court noted, was that if defendants were not allowed to introduce evidence of the *disability* benefits plaintiff received, he would receive a triple recovery: (1) his lost wages, (2) additional damages based on his lost *regular* retirement benefits, and (3) his actual disability retirement benefits. (*Id*. at 246.)

As summarized by the Court:

> [T]he basic consequence of [defendant]'s alleged tortious conduct was that Staudt could no longer work and had to retire. He therefore received retirement benefits which constitute a collateral source of compensation, and [defendant] may not offset these benefits against Staudt's lost earnings damages. But a pension is a pension is a pension, and Staudt is not entitled to characterize the disability pension payments he receives from his employer as a collateral source replacing regular pension payments that he would have received from his employer.

As the Court explained, plaintiff "could not receive both a disability pension and a regular pension, so there is no justification for allowing him to claim that he has been 'damaged' by the loss of his regular pension when he is actually receiving the disability payments." (*Id.* at 247.)

Plaintiff argues that *Rotolo* is distinguishable because here, Plaintiff would be eligible to receive both regular retirement pay (after 20 years) as well as his disability pay. Plaintiff outlines the structure used for military benefits, which he claims is different from the structure of benefits addressed in *Rotolo*.

<u>Military Benefits</u>

A member of the Army (including the Marines – see 10 U.S.C. § 7001) who has at least 20 years of service may, upon his request, be retired. (10 U.S.C. § 7314 – **NOTE**: Plaintiff cites to 10 USC 3914, however, the statute was recodified in 2018 and renumbered.) Generally, a member of the armed services is not eligible for retirement pay before the 20-year mark.

Thus, at the time of the accident at issue, it is undisputed that Plaintiff was not eligible for retirement as he had only been enlisted for approximately 12 years. As Plaintiff makes clear, he would have been eligible for retirement in 2028 – when he hit his 20-year anniversary.

Plaintiff argues that but for the accident, he would have remained active through at least his 20-year anniversary and at that time been eligible for retirement. He also contends that he would also be eligible for *disability* pay due to the injures he sustained during his deployments – prior to the accident at issue.

Plaintiff acknowledges that a service member is generally prohibited from receiving both military retirement pay and an award of disability compensation. (38 U.S.C. § 5304; *Rosinski v. Wilkie* (2020) 32 Vet.App. 264, 271.) As argued by Plaintiff: "But two programs now provide for **concurrent receipt** of repayment of waived retired pay," citing 10 U.S.C. §§ 1413a-1414. (Opp. at 8:5-8 emphasis in original.)

Plaintiff continues: "Concurrent retirement and disability pay (CRDP) is a program allowing qualifying disabled veterans to received VA disability pay and providing for receipt of full retirement for all qualified disabled veterans. 10 U.S.C. § 1414(a)." Section 1414 (a)(1) provides, in relevant part, that "a member … who is entitled … to retired pay and who is also entitled … to veterans' disability compensation for a qualifying service-connected disability … is entitled to be paid both … without regard to sections 5304 and 5305 of title 38."

"Read together, sections 5304 and 1414 establish that a veteran who obtains a disability rating of 50 percent or greater has a *qualifying service-connected disability* and thus is not subject to 5304's prohibition against receiving both retirement pay and disability compensation and need not waive the former." (*Rosinski*, supra, 32 Vet.App. at 272.) In other words, in the military, a person may be able to collect both retirement pay as well as disability pay under certain circumstances.

On Reply, Defendants do not address this factual distinction that under the military procedures a party is entitled to both retirement pay as well as disability pay (under certain circumstances). The main basis for the ruling in *Rotolo* was that plaintiff there "could not receive both a disability pension and a regular pension…." (*Rotolo*, supra, 105 Cal.App.4th at 247.) As such, there was "no justification for allowing him to claim that he has been 'damaged' by the loss of his regular pension when he is actually receiving the disability payments." (*Ibid.*)

The current matter is materially different. Plaintiff has shown that under the military retirement/disability structure, parties are allowed to collect both a retirement payment as well as a disability payment. As such, if Plaintiff can establish that he is entitled to disability pay under the relevant code sections and would have been eligible for retirement pay after 20 years of service, the rationale of *Rotolo* does not apply and Defendant would not be able to submit evidence of Plaintiff's disability pay to offset what he would receive in retirement pay.

Summary and Conclusion

The parties' stipulation to continue the trial indication that the "Parties will submit the legal issue of whether the benefits are a collateral source to Law & Motion, reserving any factual questions regarding entitlement to benefits for trial if necessary."

The Court's determination above is limited to the finding that under the relevant law relating to military retirement, Plaintiff would be, under certain circumstances, entitled to both his retirement pay (after 20 years of service) as well as his disability pay. As such, evidence of his receipt of disability pay is not admissible for the purpose of offsetting any amounts he would have received in retirement pay.

Plaintiff will still need to meet his burden to show that (1) he would be entitled to disability pay but for the accident at issue in this matter; (2) the amount of that disability pay based on the injuries he sustained prior to and not including the subject accident; and (3) the amount of his retirement pay at the 20-year mark.

Defendant's motion for summary adjudication is **denied** as outlined above.

Evidentiary Issues

The Court need only rule on those objections to evidence that were material to the disposition of the MSJ/MSA. (See CCP § 437c(q).)

As of March 1, 2026, this case is assigned for all purposes to Department 10, the Honorable Julia Campins.

22. 9:00 AM CASE NUMBER: MSC21-01668
CASE NAME: ANGELICA CURIEL VS. PRIVIA HEALTH GROUP, INC.
***HEARING ON MOTION IN RE: FINAL APPROVAL OF CLASS AND PAGA SET BY THE COURTROOM**
FILED BY:
****TENTATIVE RULING:****

Plaintiffs Angelica Curiel, Teresa Avila, Kira Chambers, and Christina Romay move for final approval of their class action and PAGA settlement with defendants Privia Health Group, Inc., Bass Medical Group, and Bass Privia Management Company of California.

A. **Background and Settlement Terms**

The original complaint was filed by plaintiff Curiel on August 4, 2021, raising class action claims against Bass Medical Group on behalf of non-exempt employees, alleging that defendant violated the Labor Code in various ways, including failure to pay minimum and overtime wages, failure to provide meal breaks, failure to provide proper wage statements, failure to reimburse necessary business expenses, and failure to pay all wages due on separation. On May 25, 2022, Chambers filed a similar action in this court (No. C22-01058). On November 29, 2022, the actions were consolidated. On April 15, 2024, plaintiffs filed a first amended class action complaint under PAGA (based on notices provided by the plaintiffs).

The settlement was first proposed for preliminary approval before Judge Treat in August of 2024. He declined to approve it as submitted, finding that there was insufficient discussion of the value of the claims, that the class included both independent contractors and employees, and that all non-exempt hourly employees would be lumped together with Bass employees.

The settlement was revised and plaintiffs filed a renewed motion, which was granted.

The settlement would create a gross settlement fund of $5.1million. The class representative payment to plaintiff would be up to $12,500 for each of the four plaintiffs. Attorney's fees would be $1.938 million (38% of the settlement). Litigation costs would not exceed $75,000. The settlement administrator's costs would not exceed $30,000. PAGA penalties would be $650,000. Because the LWDA notices in question were filed before June 19, 2024, the employees would receive a 25% share of PAGA penalties, or $162,500. (Labor Code §2699(m), (v)(1).) The net amount paid directly to the class members would be about $2.357 million (now estimated at $2,480,599.74. The fund is non-reversionary. Based on the estimated class size of 3,310, the average net payment for each class member is now estimated at approximately $905.

The proposed settlement would certify a class of all current and former non-exempt employees employed by Bass Medical Group during the class period. (Settlement, Par. I.2.) A separate group of "IC Class members" (estimated at 25 people), would receive payments averaging $1,342. The "PAGA Group" members would receive an average of $31.33 Payments, however, would include funds attributable to time that a class member performed paid work as an independent contractor for any of the three defendants.

The class members will not be required to file a claim. Class members may object or opt out of the settlement. (Aggrieved employees cannot opt out of the PAGA portion of the settlement.) Funds would be apportioned to class members based on the number of workweeks worked during the class period.

Various prescribed follow-up steps will be taken with respect to mail that is returned as undeliverable. Checks undelivered or uncashed 180 days after mailing will be voided, and would be tendered to the State Controller's unclaimed property fund.

Since preliminary approval, notice has been provided to the class. 2,741 notice packages were mailed, and none were returned. As of the date of the settlement administrator's declaration (January 6, 2026), no objections or requests for exclusion were received. Based on the December 1, 2025, mailing date, and the 45-day notice period to object or request exclusion, however, a supplemental declaration from the settlement administrator indicating the status as of January 15, 2026 , is necessary.

The settlement contains release language (see Par. 86) covering "all causes of action and claims pled in the Actions and all other claims. . . that could have been alleged based on the facts pled in the Actions[.]"Under recent appellate authority, the limitation to those claims with the "same factual predicate" as those alleged in the complaint is critical. (*Amaro v. Anaheim Arena Mgmt., LLC* (2021) 69 Cal.App.5th 521, 537 ["A court cannot release claims that are outside the scope of the allegations of the complaint." "Put another way, a release of claims that goes beyond the scope of the allegations in the operative complaint' is impermissible." (*Id*., quoting *Marshall v. Northrop Grumman Corp*. (C.D. Cal.2020) 469 F.Supp.3d 942, 949.)

Informal written discovery was undertaken. The matter settled after arms-length negotiations, which included a session with an experienced mediator.

Counsel attest that they have analyzed the value of the case, and that the result achieved in this litigation is fair, adequate, and reasonable. The renewed motion contains a case-specific analysis of the value of the case. (See St. John Dec.) Counsel's declaration include an estimate of the potential value of the case, broken down by each type of claim.

The potential liability needs to be adjusted for various evidence and risk-based contingencies, including problems of proof. PAGA penalties are difficult to evaluate for a number of reasons: they derive from other violations, they include "stacking" of violations, the law may only allow application of the "initial violation" penalty amount, and the total amount may be reduced in the discretion of the court. (See Labor Code, § 2699(e)(2) [PAGA penalties may be reduced where "based on the facts and circumstances of the particular case, to do otherwise would result in an award that is unjust arbitrary and oppressive, or confiscatory."])

Counsel attest that a copy of the proposed settlement was served on the LWDA.

B. **Legal Standards**

The primary determination to be made is whether the proposed settlement is "fair, reasonable, and adequate," under *Dunk v. Ford Motor Co*. (1996) 48 Cal.App.4th 1794, 1801, including "the strength of plaintiffs' case, the risk, expense, complexity and likely duration of further litigation, the risk of maintaining class action status through trial, the amount offered in settlement, the extent of discovery completed and the state of the proceedings, the experience and views of counsel, the presence of a governmental participant, and the reaction … to the proposed settlement." (See also *Amaro v. Anaheim Arena Mgmt., LLC, supra,* 69 Cal.App.5th 521.)

Because this matter also proposes to settle PAGA claims, the Court also must consider the criteria that apply under that statute. Recently, the Court of Appeal's decision in *Moniz v. Adecco USA, Inc.* (2021) 72 Cal.App.5th 56, provided guidance on this issue. In *Moniz*, the court found that the "fair, reasonable, and adequate" standard applicable to class actions applies to PAGA settlements. (*Id.*, at 64.) The Court also held that the trial court must assess "the fairness of the settlement's allocation of civil penalties between the affected aggrieved employees[.]" (*Id*., at 64-65.)

California law provides some general guidance concerning judicial approval of any settlement. First, public policy generally favors settlement. (*Neary v. Regents of University of California* (1992) 3 Cal.4th 273.) Nonetheless, the court should not approve an agreement contrary to law or public policy. (*Bechtel Corp. v. Superior Court* (1973) 33 Cal.App.3d 405, 412; *Timney v. Lin* (2003) 106 Cal.App.4th 1121, 1127.) Moreover, "[t]he court cannot surrender its duty to see that the judgment to be entered is a just one, nor is the court to act as a mere puppet in the matter." (*California State Auto. Assn. Inter-Ins. Bureau v. Superior Court* (1990) 50 Cal.3d 658, 664.) As a result, courts have specifically noted that *Neary* does not always apply, because "[w]here the rights of the public are implicated, the additional safeguard of judicial review, though more cumbersome to the settlement process, serves a salutatory purpose." (*Consumer Advocacy Group, Inc. v. Kintetsu Enterprises of America* (2006) 141 Cal.App.4th 48, 63.)

C. **Attorney fees**

Plaintiff seeks 38% of the total settlement amount ($1,938,000) as fees, relying on the "common fund" theory. Even a proper common fund-based fee award, however, should be reviewed through a lodestar cross-check. In *Lafitte v. Robert Half International* (2016) 1 Cal.5th 480, 503, the Supreme Court endorsed the use of a lodestar cross-check as a way to determine whether the percentage allocated is reasonable. It stated: "If the multiplier calculated by means of a lodestar cross-check is extraordinarily high or low, the trial court should consider whether the percentage used should be adjusted so as to bring the imputed multiplier within a justifiable range, but the court is not necessarily required to make such an adjustment." (*Id.*, at 505.) Counsel have computed a lodestar fee (combined for the three law firms that represented plaintiffs), the lodestar is calculated at $478,420, based pm 567.60 hours, which results in a blended rate of $842. The imputed multiplier is 4.06.

Even based on the percentage of the common fund, plaintiffs' request for 38% is higher than typical in these cases. A fee of 30% of the recovery would still constitute $1,530,000 (and would leave an imputed multiplier of 3.20). While plaintiffs' moving papers discuss the difficulties of this type of litigation, there appears to be nothing extraordinary about the circumstances of this case. The Court finds that the reasonable fee here is $1,530,000 and grants the motion in that amount.

Litigation costs of $26,179.80 are reasonable and are approved.

Settlement administration costs of $21,975 are reasonable and are approved.

The requested representative payment of $12,500 for each plaintiff ($50,000 total) is reviewed now, under the Criteria for evaluation of representative payment requests discussed in *Clark v. American Residential Services LLC* (2009) 175 Cal.App.4th 785, 804-807. Each plaintiff has filed a declaration attesting to their involvement in the matter and the time they spent on it. Based primarily on the size of the total recovery, the Court awards each plaintiff $12,500.

D. **Conclusion**

The Court requires plaintiffs to submit a supplemental declaration from the settlement administrator indicating whether any objections or requests for exclusion were received before the January 15, 2026 deadline. **The declaration is to be provided no later than February 5, 2026, and the hearing on this matter will be continued to February 19, 2026.**

Until that declaration is provided and reviewed (so that any objectors may be heard), the Court cannot find whether the proposed settlement is sufficiently fair, reasonable, and adequate to approve.

If approval is granted, counsel will be directed to prepare an order reflecting this tentative ruling, and the other findings in the previously submitted proposed order. The ultimate judgment must provide for a compliance hearing after the settlement has been completely implemented. Plaintiffs' counsel are to submit a compliance statement one week before the compliance hearing date. 5% of the attorney's fees are to be withheld by the claims administrator pending satisfactory compliance as found by the Court.

23. 9:00 AM CASE NUMBER: MSC22-00088
CASE NAME: KALAMAS VS. JOHN MUIR HEALTH
***HEARING ON MOTION IN RE: STRIKE OF TAX COSTS (CONTINUED FROM 12.18.2025)**
FILED BY:
TENTATIVE RULING:*

Continued by stipulation and order (entered January 20, 2026), to March 5, 2026, 9:00 a.m., in Department 10, the Honorable Julia Campins. As of March 1, 2026, this matter is assigned to Judge

Campins for all purposes.

Law & Motion
Add On

24. 9:00 AM CASE NUMBER: C24-00237
CASE NAME: CONNOR BEARE VS. THE LAW OFFICES OF MITCHELL D. BLUHM & ASSOCIATES, LLC
***HEARING ON MOTION IN RE: PRELIMINARY APPROVAL OF CLASS ACTION SETTLEMENT**
(CONTINUED FROM: 01/22/2026)
FILED BY:
****TENTATIVE RULING:****

This matter was first heard on January 22, 2026, and continued to resolve one matter concerning the cy pres beneficiary. That matter having been resolved, the motion is granted.

Plaintiff Connor Beare moves for preliminary approval of his class action with defendant Law Offices of Mitchell D. Bluhm & Associates, LLC and Robert Bradley Ridgeway ("Defendants").

A. **Background and Settlement Terms**

The original complaint was filed January 31, 2024, raising class action claims under the California Rosenthal Fair Debt Collection Practices Act and California Civil Code sections 1812.700-1812.702, on behalf of 13 individuals who received debt-collection letters from defendants. Defendants allegedly did not provide a statutorily-required "Consumer Collection Notice" in proper form and substance in connection with efforts to collect a debt. It further alleged that Robert Ridgeway, an attorney employed by the law office in question, had failed to obtain a debt collection license from the California Department of Financial Protection and Innovation as required by Financial Code §100001.

The proposed settlement would certify a class of thirteen persons who received the letters from defendant. Defendant would pay $6,500 (based on a statutory penalty provision), with a minimum payment of $500 to each class member. Defendants would be primarily responsible for administering the notice and implementation of the settlement.

If some class members are located and sent checks, but do not cash the checks, the remaining funds would be paid to a cy pres recipient, Bay Area Legal Aid. Counsel is required to attest that they do not have any pecuniary interest in the cy pres recipient, and must "notify the court if the attorney has a connection to or a relationship with a nonparty recipient." (C.C.P. § 382.4.) After the Court issued its tentative ruling indicating that a declaration was needed to comply with this requirement, a declaration adequately attesting to the fact that none of plaintiff's counsel "has any interest or involvement in the governance or work of the proposed cy pres recipient." This is sufficient. In addition, the cy pres recipient must be qualified under Code of Civil Procedure section 384(b), which requires that cy pres funds be provided "to nonprofit organizations or foundations to support projects that will benefit the class or similarly situated persons, or that promote the law consistent with the objectives and purposes of the underlying cause of action, to child advocacy programs, or to nonprofit organizations providing civil legal services to the indigent[.]"of the distribution that could reasonably create the appearance of impropriety as between the selection of the recipient of the money or thing of value and the interests of the class." Bay Area Legal Aid meets this requirement.

Defendants would agree not to engage in further debt collection practices in California without proper registration. Plaintiff would receive a service award of $2,000. Plaintiff's counsel would apply for an attorney fee of $45,000, as part of the process of final approval of the settlement.

The class members will not be required to file a claim. Class members may object or opt out of the settlement. Objections may be made in writing within sixty days after initial notice, or may object at the final fairness hearing. Various prescribed follow-up steps will be taken with respect to mail that is returned as undeliverable.

The settlement contains release language covering all of the "released claims," "arising from or relating to collection letters mailed by or on behalf of Defendants in the form attached as Exhibit "1" to Plaintiff's Class Action Complaint filed herein[.]" (Agreement, Par. 2.16.) Under recent appellate authority, the limitation to those claims with the "same factual predicate" as those alleged in the complaint is critical. (*Amaro v. Anaheim Arena Mgmt., LLC* (2021) 69 Cal.App.5th 521, 537 ["A court cannot release claims that are outside the scope of the allegations of the complaint."] "Put another way, a release of claims that goes beyond the scope of the allegations in the operative complaint' is impermissible." (*Id*., quoting *Marshall v. Northrop Grumman Corp*. (C.D. Cal.2020) 469 F.Supp.3d 942, 949.)

Formal written discovery was undertaken. The matter settled after arms-length negotiations.

Counsel attest that they have analyzed the case, and that the result achieved in this litigation is fair, adequate, and reasonable.

B. **Legal Standards**

The primary determination to be made is whether the proposed settlement is "fair, reasonable, and adequate," under *Dunk v. Ford Motor Co*. (1996) 48 Cal.App.4th 1794, 1801, including "the strength of plaintiffs' case, the risk, expense, complexity and likely duration of further litigation, the risk of maintaining class action status through trial, the amount offered in settlement, the extent of discovery completed and the state of the proceedings, the experience and views of counsel, the presence of a governmental participant, and the reaction … to the proposed settlement." (See also *Amaro v. Anaheim Arena Mgmt., LLC, supra,* 69 Cal.App.5th 521.)

California law provides some general guidance concerning judicial approval of any settlement. First, public policy generally favors settlement. (*Neary v. Regents of University of California* (1992) 3 Cal.4th 273.) Nonetheless, the court should not approve an agreement contrary to law or public policy. (*Bechtel Corp. v. Superior Court* (1973) 33 Cal.App.3d 405, 412; *Timney v. Lin* (2003) 106 Cal.App.4th 1121, 1127.) Moreover, "[t]he court cannot surrender its duty to see that the judgment to be entered is a just one, nor is the court to act as a mere puppet in the matter." (*California State Auto. Assn. Inter-Ins. Bureau v. Superior Court* (1990) 50 Cal.3d 658, 664.) As a result, courts have specifically noted that *Neary* does not always apply, because "[w]here the rights of the public are implicated, the additional safeguard of judicial review, though more cumbersome to the settlement process, serves a salutatory purpose." (*Consumer Advocacy Group, Inc. v. Kintetsu Enterprises of America* (2006) 141 Cal.App.4th 48, 63.)

C. **Attorney fees**

Plaintiff seeks $45,000 as fees. Following typical practice, however, the fee award will not be considered at this time, but only as part of final approval. Counsel are directed to provide a lodestar figure for any hearing on final approval.

Similarly, the requested representative payment of $2,000 for plaintiff will be reviewed at time of final approval. Criteria for evaluation of representative payment requests are discussed in *Clark v. American Residential Services LLC* (2009) 175 Cal.App.4th 785, 804-807.

D. **Conclusion**

The Court finds that the proposed settlement is sufficiently fair, reasonable, and adequate to justify preliminary approval. **The motion is granted**.

Counsel are directed to prepare an order reflecting this tentative ruling, the other findings in the previously submitted proposed order, and to obtain a hearing date for the motion for final approval from the Department clerk in Department 39. (The hearing itself will be set in Department 16, the Honorable Benjamin Reyes, which is assigned this matter for all purposes as of March 1, 2026.) Other dates in the scheduled notice process should track as appropriate to the hearing date. The ultimate judgment must provide for a compliance hearing after the settlement has been completely implemented. Plaintiffs' counsel are to submit a compliance statement one week before the compliance hearing date. 5% of the attorney's fees are to be withheld by the claims administrator pending satisfactory compliance as found by the Court.